FRANMARINE UNDERWATER SERVICES PTY LTD

SAFETY MANAGEMENT SYSTEM

Core Document

MV Seagull | UVI: 425689 | Class 2D, 2E

Marine Order 504 (2024) — Schedule 1 Compliance

Document Number:	FUS-SMS-SGL-01
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Author:	Matthew Hilder
Reviewed By:	Belinda Brooks
Approved By:	Kirby Hamilton
Vessel:	MV Seagull (UVI 425689)

DOCUMENT CONTROL

Revision History

Rev	Date	Author	Description	Approved
01	7 July 2026	M. Hilder	Initial issue	K. Hamilton

Approval

Role	Name	Date
Author	Matthew Hilder	7 July 2026
Reviewed	Belinda Brooks	7 July 2026
Approved	Kirby Hamilton	7 July 2026

Review Frequency

This document shall be reviewed at least every 12 months, or sooner following a significant incident, change of operations, vessel modification, or change in applicable legislation.

Controlled Distribution

This document is a controlled distribution issued from the Franmarine document management system (DMS), which holds the master record, revision history, and approval log. The controlled digital copy is located in the vessel's SharePoint folder. Printed or downloaded copies are uncontrolled; refer to the SMS Document Register for the current revision status.

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1. PURPOSE

This Safety Management System (SMS) has been developed by Franmarine Underwater Services Pty Ltd to comply with Marine Order 504 (Certificates of operation — national law) 2024 and the Marine Safety (Domestic Commercial Vessel) National Law Act 2012. It establishes the policies, procedures, and practices necessary for the safe operation of MV Seagull and the protection of all persons onboard and the marine environment.
This SMS satisfies the requirements of Schedule 1 (Operation Requirements) of Marine Order 504 (2024). It is a condition of the Certificate of Operation that this SMS remains current, is implemented, and is readily accessible.

2. SCOPE

This SMS applies to the owner, master, crew, and special personnel of MV Seagull during all commercial operations authorised under Certificate of Operation COO-690-006 (valid to 03 August 2030).

3. APPLICABLE LEGISLATION AND STANDARDS

Legislation / Standard
Marine Safety (Domestic Commercial Vessel) National Law Act 2012
Marine Order 504 (Certificates of operation — national law) 2024
EX02 — Marine Safety (Certificates of survey) Exemption 2025
National Standard for Commercial Vessels (NSCV)
AS/NZS 2299.1:2015 — Occupational Diving Operations
Work Health and Safety Act 2011 (NSW)
Navigation Act 2012 (where applicable)
Protection of the Sea (Prevention of Pollution from Ships) Act 1983 (where applicable)
International Regulations for Preventing Collisions at Sea (COLREGs)

4. SMS DOCUMENT REGISTER

The SMS comprises the following documents and addendums, stored in the corresponding SharePoint folder:

Folder	**Document**	**MO504 Ref**	**Addendums**
01	SMS Core Document	Cl 1,3,4,5,11(6)	01A Master's Sign-Off
02	Risk Assessment and Risk Register	Cl 2	—
03	Crewing	Cl 6, 8, 10	—
04	Induction and Training	Cl 9	04A Induction / 04B Drills

05	Procedures	Cl 11	05A–05K
06	Emergency Plan	Cl 12	06A–06K (per procedure)
07	Maintenance	Cl 14	—
08	Documentation and Logs	Cl 15	—
09	Certificates and Permits	s9; EX02	—
10	Fatigue Management	Cl 2(3)(e)	—
11	Vessel Modifications	Cl 15(11)	—
12	Review and Verification	Cl 13, 16	—

5. DISTRIBUTION AND ACCESS

The master record for all SMS documents is held in Franmarine's document management system (DMS), which maintains the revision history, approval records, and distribution log. The copies held in the vessel's SharePoint folder are controlled distributions issued from that master record. Current revision status is maintained in the SMS Document Register. Printed or downloaded copies are uncontrolled and must be verified against the controlled digital copy in SharePoint before reliance.

(a) Onboard — the SMS is available digitally only, through SharePoint, accessed via the Supervisor/Master laptop or iPad. The SMS can be downloaded onto the device to provide offline access.
(b) Onshore — with the designated person and shore-based management, accessed through SharePoint.
This SMS must be presented to AMSA or a marine safety inspector upon request.

6. VESSEL PARTICULARS

Particular	Detail
Vessel Name	MV Seagull
UVI	425689
Class	2D, 2E
Approval Number	EX02-10309
Certificate of Operation	COO-690-006
Type / Hull	Power Monohull / Aluminium
Design	CLGC Landing Barge
Measured Length	6.5 m
Beam	2.3 m
Draft	0.8 m
Displacement	1.2 t (lightship)

Propulsion	single Yamaha F150XD (148 HP)
Total Engine Power	110.3 kW
Drive Type	Outboard
Fuel Type / Capacity	Petrol / to confirm (outboard fuel tank)
Navigation	Echo sounder and compass
Equipment	SSBA dive spread; drop-down bow ramp
Max Persons Onboard	6 (4 crew + 2 special personnel)
Max Deadweight (excl. personnel)	1.2 t deck load per approved stability book
Stability Report	N/A (non-survey vessel under Exemption 02 - stability book not required)

6.1 EX02 Conditions

(a) Safety equipment stowed and available for use. (b) No towing, no oil & gas support, no dangerous goods, no inboard petrol engine. (c) Liferaft or dinghy sufficient for all persons on board. (d) The vessel has one Yamaha F150XD outboard engine. (e) Operations limited to New South Wales - a Certificate of Survey or other exemption is required to operate outside NSW.

6.2 Areas of Operation

(a) NSW partially smooth waters (Class 2D). (b) NSW smooth waters (Class 2E). (c) New South Wales only (Certificate of Survey or other exemption required outside NSW).

7. SAFETY EQUIPMENT

MV Seagull carries safety equipment in accordance with NSCV C7 Class 2D requirements and the conditions of Exemption 02 (EX02-10309). Safety equipment requirements are per Part 1 of the NSCV C7 Class 2D Equipment Guide (P200608, revised August 2023). As a non-survey vessel under Exemption 02, MV Seagull applies the full NSCV C7 Class 2D survey equipment requirements as the baseline, with additional safety factors in several areas. The vessel carries one buoyant lifebuoy (life ring) fitted with 30 m of 8 mm buoyant rope and a self-igniting light, as required by AMSA safety-equipment guidance for non-survey Class 2D vessels under 12 m. A separate radar reflector is not carried, as it is not listed in that guidance for non-survey vessels and the aluminium hull provides inherent radar reflectivity.

7.1 Safety Equipment Summary

Equipment	Requirement / Qty
Buoyant lifebuoy (life ring) with 30 m x 8 mm buoyant rope and self-igniting light	1
Coastal lifejackets with self-activating light for 100% complement	6 minimum
Parachute distress rockets	3

Red hand-held flares	2
Hand-held orange smoke signal	1
Battery operated torch per crew member	All crew
Scale G First Aid Kit	1 kit
VHF Radio	1 fixed + 1 handheld
Signalling light	1
Fire extinguishers (per NSCV C4)	Per vessel risk assessment
Manual bilge pump (4.0 kL/hr)	1 - located midships, port side under the gunwale
Sea anchor	1 (vessel <10m unless capable of anchoring in deep water)
Anchor, cables, hawsers and warps	Per NSCV C7D
Compass (75mm min card diameter)	1 (vessel <10m)
Echo sounder	1
Map or chart of operational area	Digital electronic charts, current for the area of operation
Radar reflector	Not required - not listed in AMSA safety-equipment guidance for non-survey Class 2D vessels; aluminium hull also provides inherent radar reflectivity
Navigation lights per COLREGs / MO30	Full set
Sound signal	1 (vessel <12m LOA)
Logbook (per MO504)	1

8. OWNER, OPERATOR AND CONTACTS

DESIGNATED PERSON (Schedule 1, Clause 4)

Primary Designated Person:
Name: Kirby Hamilton
Phone: 0439 389 261
Email: kirby@franmarine.com.au

Backup Designated Person:
Name: Matthew Hilder
Phone: 0452 123 732
Email: matt@franmarine.com.au

Roles and Responsibilities of the Designated Person (Schedule 1, Clause 4(2)–(4)):
(a) Monitor the safety of the vessel, the environment, and all persons on or near the vessel.

(b) Ensure appropriate resources and shore support are provided to the vessel.
(c) Have direct access to any individual with responsibility for the vessel's operation, including the highest levels of Franmarine management.
(d) Be contactable by the master or crew of the vessel at all times.
(e) Liaise with AMSA and marine safety inspectors on behalf of the owner as required.
(f) Monitor compliance with the SMS, the Certificate of Operation conditions, and applicable legislation.
(g) Coordinate the investigation of marine incidents, hazardous occurrences, and non-conformances.
(h) Ensure corrective actions arising from incidents, reviews, and inspections are implemented.

Detail	
Owner / Operator	Franmarine Underwater Services Pty Ltd
ABN	81 059 653 459
Address	32/75 Corish Circle, Banksmeadow NSW 2019
Phone	+61 2 7228 9691
Email	operations@franmarine.com.au

8.1 Emergency and 24-Hour Contacts

Priority	Name	Position	Phone	Availability
1st Call	Kirby Hamilton	East Coast Operations Manager	0439 389 261	24 hours
2nd Call	Matthew Hilder	East Coast Operations Superintendent	0452 123 732	24 hours
3rd Call	Adam Falconer-West	CEO / Managing Director		Business hours

9. OWNER'S RESPONSIBILITY AND AUTHORITY STATEMENT

The owner shall ensure: (a) SMS implemented and maintained. (b) Annual review and updates. (c) Adequate resources for safe operation. (d) Appropriate crewing determined and documented. (e) Risk assessment developed with master and crew. (f) Crew competent, qualified, and fit. (g) Designated person appointed and contactable. (h) Incidents investigated and addressed. (i) Exemption and COO current. (j) Delegated authorities documented. (k) Communication lines defined.
Drug and Alcohol Policy: Franmarine maintains a company-wide Fitness for Work Policy (FRA-POL-008) which addresses how the risks of drug and alcohol use are managed (Schedule 1, Clause 11(6)). FRA-POL-008 applies to all personnel operating from this vessel and will be included in the final SMS folder. All crew shall be familiar with this policy before commencing operations.
Lines of Communication (Schedule 1, Clause 3(2)(c)): The master reports directly to the designated person (Kirby Hamilton) on all operational and safety matters. The designated person has direct access to the owner (Franmarine Underwater Services Pty Ltd management). Shore-based support is provided by the East Coast Operations Superintendent (Matthew Hilder). In an emergency, the master may contact the designated person, the East Coast Operations Superintendent, or AMSA directly. Day-to-day operational communications flow from the master to the East Coast Operations Superintendent, who coordinates with the designated person and management as required.

Signed on behalf of the Owner — Franmarine Underwater Services Pty Ltd:

Name:	
Date:	
Signature:	

10. DESIGNATED PERSON

The designated person monitors safety, ensures resources and shore support, and is contactable at all times during operations (Schedule 1, Clause 4).

Designated Person	Kirby Hamilton
Position	East Coast Operations Manager
Phone	0439 389 261
Alternate	Matthew Hilder — East Coast Operations Superintendent — 0452 123 732

Responsibilities: monitor safety and pollution prevention; ensure resources and shore support; be contactable at all times; receive and act on incident reports; escalate concerns to owner; support annual review.

Name:	
Date:	
Signature:	

11. MASTER'S RESPONSIBILITY AND AUTHORITY STATEMENT

The master of MV Seagull has overriding authority and responsibility for the safety of the vessel, all persons on board, and the protection of the marine environment. This authority applies at all times when the master is in command, regardless of directions from the owner, operator, client, or any other party. The master shall not be constrained or penalised for any decision made in the interest of safety.

11.1 Authority

The master has the authority to:
(a) Make any decision necessary to ensure the safety of the vessel, crew, passengers, and special personnel.
(b) Refuse to sail or suspend operations if, in the master's professional judgement, conditions are unsafe or the vessel is not in a fit state to proceed.
(c) Request additional resources, assistance, or support from the owner or designated person at any time.
(d) Refuse to carry passengers, cargo, or personnel that would compromise the safety of the vessel.
(e) Deviate from the planned voyage if necessary for the safety of life, vessel, or environment.
(f) Direct all persons on board in any matter relating to safety.
(g) Report directly to AMSA or any regulatory authority on safety matters without reference to the owner or operator.

11.2 Responsibilities

The master is responsible for: verifying that the SMS is implemented and all operations are conducted in accordance with its procedures; ensuring the SMS and all addendums are current, accessible onboard, and understood by all crew; identifying deficiencies in the SMS and reporting them to the designated person; completing all pre-departure checks before every voyage (FUS-SMS-SGL-05A); confirming that all crew have completed the vessel-specific induction; confirming that the vessel is properly crewed in accordance with FUS-SMS-SGL-03; conducting a fit-for-duty assessment of all crew, including drug and alcohol compliance; verifying that all required safety equipment, documentation, and certificates are onboard and current; ensuring adequate fuel for the voyage plus a minimum 30% reserve; planning the passage and briefing all crew before departure.
The master shall ensure the vessel is navigated safely in compliance with the COLREGs, Marine Order 30, and FUS-SMS-SGL-05F; maintain a proper lookout at all times; comply with VTS requirements and port authority directions; assign duties to crew appropriate to their qualifications and experience; monitor crew fatigue and ensure compliance with the fatigue management plan (FUS-SMS-SGL-10); ensure emergency drills are conducted at the required frequency and recorded (FUS-SMS-SGL-04B); take command of all emergency situations; maintain the vessel logbook accurately and completely; and report all incidents, hazardous occurrences, and non-conformances to the East Coast Operations Superintendent and the designated person immediately.
When diving operations are conducted, the master shall coordinate with the Diving Supervisor to ensure the vessel is correctly positioned, signalled, and secured (FUS-SMS-SGL-05H); maintain VHF watch and lookout throughout diving operations; and ensure the vessel is not moved while divers are in the water unless directed by the Diving Supervisor or required for safety.

11.3 Master Sign-Off

Each person who assumes the role of master on MV Seagull shall read, understand, and sign the Master's Sign-Off form (FUS-SMS-SGL-01A) before assuming command. The sign-off confirms that the master has read this SMS, understands the responsibilities and authority set out in this section, and accepts the role. A separate copy of the sign-off form shall be maintained for each master.

12. CREW AND SPECIAL PERSONNEL

Crew must comply with the SMS, procedures, and master's directions. Report hazards, defects, and incidents immediately. Special personnel (up to 2) must complete induction before departure.

13. DRUG AND ALCOHOL POLICY

No person shall perform duties while impaired. BAC limit: 0.00% on duty/standby. No illicit drugs onboard. Prescription medications reported to master. No alcohol within 8 hours of duty. Master conducts fit-for-duty assessment before each departure. Breaches: immediate removal, disciplinary action, AMSA reporting. Familiarisation during induction.